COMMUNITY LANGUAGE SCHOOLS CHILD SAFETY CODE OF CONDUCT

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C.L.V.
COMMUNITY LANGUAGES VICTORIA

CHILD SAFETY CODE OF CONDUCT

The following Code of Conduct is provided as a template only. Your school should interpret and expand this policy as required.

The content provided throughout this document is a guide to demonstrate what your School may consider appropriate for inclusion in its Code of Conduct. Your organisation should also consider the information, documents and strategies required for your school and relevant to its circumstances. The Code of Conduct should be reviewed every year and updated as needed.

All staff and volunteers **must sign a Code of Conduct** declaration at the start of employment and on **an annual basis** to show that they understand the principles of our Code of Conduct, confirm that they have complied with them in the previous 12 months and agree to adhere to them in the future. This Code of Conduct is to be read in conjunction with all other policies, procedures and guidelines.

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Drafted by	Neda Erjaei	Approved by Committee	29 November 2023
Responsible person	Neda Erjaei	Scheduled review date	29 November 2024

CHILD SAFETY CODE OF CONDUCT

Philippine Language School of Victoria

This Code of Conduct outlines appropriate standards of behaviour by adults towards children.

The Code of Conduct aims to protect children and reduce opportunities for abuse or harm. It also helps staff and volunteers by guiding how to best support children and avoid or better manage difficult situations. This Code of Conduct applies to all people involved in the Philippine Language School of Victoria's activities, including principals, teachers, coaches, officials, volunteers and parents.

Philippine Language School of Victoria has zero tolerance for child abuse.

Responsibilities of School Staff

Staff must:

- Ensure they are clear about their roles and responsibilities regarding child safety. Where they are unsure, they must seek guidance from School Authorities.
- Always adhere to the Philippine Language School of Victoria's Child Safe Policy and always uphold the Statement of Commitment to Child Safety and the Philippine Language School of Victoria's philosophy.
- Observe safe child standards and expectations for appropriate behaviour towards and in the company of children as laid out in this Code of Conduct.
- Maintain a safe environment for all children.
- Take all reasonable steps to protect children from abuse.
- Ensure they are aware of their obligations to report suspected abuse immediately and to **call the police on 000 if there is an immediate concern for a child's safety.**
- Ensure they are aware of the indicators when a child may be at risk of harm or significant harm.
- Positively represent community language schools.
- Treat students and families in the school community with respect, both within the school environment and outside the school environment as part of normal social and community activities.
- Listen and respond to the views and concerns of students, particularly if they are telling you that they or another child has been abused or that they are worried about their safety/the safety of another child.
- Promote the cultural safety, participation, and empowerment of Aboriginal and Torres Strait Islander students.

- Promote the cultural safety, participation and empowerment of students with culturally and/or linguistically diverse backgrounds.
- Promote the safety, participation, and empowerment of students with a disability.
- Report any identified risks to the Child Safety Officer and school authorities as soon as practicable
    - respecting and complying with the law
    - not exploiting their position for an inappropriate personal or financial benefit
    - ensuring their personal or financial interests do not interfere with the performance of their duties
    - acting with discretion and maintaining confidentiality in all communications concerning their professional teaching responsibilities
    - being aware of the potentially severe impact that any demonstration of intolerance or prejudice could have on the safety and well-being of children, their standing as a teacher or the profession as a whole
- Ensure all relevant checks are up to date (i.e. Working with Children Check, VIT etc.)
- Observe all the rules and policies of the school, including those specified in the constitution and any others determined by the School Management Committee or the membership of the organisation.
- If child abuse is suspected, ensure as quickly as possible that the student/s is safe and protected from harm.
- Encourage children and young people to express themselves and their opinions.
- Listen and respond to the views and concerns of children.
- Report any allegations of child abuse to the School Leadership and delegated Child Safety Officer.
- Report any allegation of abuse to the appropriate authority, e.g. Department of Health and Human Services, Victoria Police, DET, CCYP
- Support the safety, participation, well-being and empowerment of children.
- Inform children and young people if physical contact is required for any purpose, and ask them if they are comfortable with this interaction.
- Treat students and parents in the school community with respect, both within and outside the school environment.
- Treat all who enter the school with courtesy, respect and consideration, act on complaints and provide services to the best of their ability.
- Attend child safeguarding training.
- Follow any grievance procedures set down by the School Management Committee to try to resolve any conflicts with staff, students and parents.
- Declare any conflicts of interest with children, young people and their families.

Teachers must comply with the requirements of:

- mandatory reporting and other reporting obligations
- the principle of negligence, which includes the duty of care
- laws preventing discrimination, harassment and vilification
- protection of privacy
- occupational health and safety

Teacher registration. Teachers should be aware of:

- safe child standards
- reportable conduct
- any other relevant legislation, policies or regulations that pertain to the role of a teacher in child safety and well-being.

Staff must not:

- Exhibit harmful behaviour, including abusive behaviour toward or in the presence of children and young people.
- Use physical force, e.g. smacking or hitting, for any form of discipline.
- Engage in rough physical games.
- Communicate with a child through personal or private networks (including online, text messaging, gaming, and email).
- Seek contact with children and young people outside of school programs.
- Take Photographs or videos without appropriate clearance from the principal(i.e. for a school-related activity and never for personal use) and consent of the child and the permission of their parents.
- Take photos or videos of a child on a personal device and for personal use.
- Request that a child keep secrets from other adults, children or their parents.
- Discriminate against any child because of disability, age, gender identity, race, culture, sexual orientation, religion or ethnicity.
- Develop any 'special' relationships with children that could be seen as favouritism (for example, the offering of gifts or special treatment for specific children).
- Exhibit behaviours with children which may be construed as unnecessarily physical (for example, inappropriate sitting on laps. Sitting on laps may be appropriate sometimes, for instance, while reading a storybook to a small child in an open plan area).
- Put children at risk of abuse (for example, by locking doors).
- Ignore or disregard any concerns, suspicions or disclosures of child abuse or harm.
- Do things of a personal nature that a child can do for themselves, such as toileting or changing clothes.
- Engage in open discussions of a mature or adult nature in the presence of children (for example, personal social activities).
- Use inappropriate language in the presence of children.

- Seek to use children in any way to meet the needs of adults.
- Express personal views on culture, race or sexuality in the presence of children.
- Have contact with a child or their family outside of the school without the Child Safety Officer's knowledge and consent (for example, no babysitting) – accidental contact, such as seeing people in the street, is appropriate).
- Have any online contact with a child or their family (unless necessary, for example, providing families with e-newsletters).
- Ignore or disregard any suspected or disclosed child abuse.
- Discuss confidential issues of the school with people outside the organisation.
- Take illegal drugs or consume alcohol when on duty or on School premises.
- Harass in any form students, other staff or parents of the school.

School Principals and Child Safe Officers must:

- Take a preventative, proactive and participatory approach to child safety.
- Value and empower children to participate in decisions that affect their lives.
- Foster a culture of openness that supports all persons to disclose risks of harm to the safety of children.
- Respect diversity in cultures and child-rearing practices while keeping child safety paramount.
- Provide written guidance on appropriate conduct and behaviour towards children.
- Engage only the most suitable people to work with children and have high-quality staff and volunteer supervision and professional development.
- Ensure children know who to talk with if they are worried or are feeling unsafe and that they are comfortable and encouraged to raise such concerns.
- Report suspected abuse, neglect or mistreatment promptly to the appropriate authorities.
- Share information appropriately and lawfully with other organisations where the safety and wellbeing of children are at risk.
- Value the input of and communicate regularly with families and carers.
- Act as role models, modelling compliance and championing child safety across school activities.
- Ensure that all staff:
    - are clear about their roles and responsibilities regarding child safeguarding and child protection;
    - are required to observe child safe standards and expectations for appropriate behaviour towards and in the company of children;
    - take all reasonable steps to protect children from abuse;
    - are aware of their obligations to report suspected abuse immediately;
    - are aware of the indicators when a child may be at risk of harm or significant harm.

- Provide and attend training and development for all staff in recognising and reporting abuse and harm.
- Ensure appropriate policies and procedures are in place to protect children and young people from abuse.
- Provide easily understandable and accessible reporting procedures.
- Ensure that any allegations of child abuse are reported to the appropriate authorities, i.e. the Police, Child Protection, DET, CCYP.
- Meet all obligations under the Reportable Conduct Scheme.
- Ensure that any allegations of child abuse are reported to the CLV Child Safe Officer.
- If an allegation of child abuse is made, ensure that the child(ren) is safe as quickly as possible.
- Ensure all staff access to relevant acts, regulations, standards and other resources to fulfil their obligations.
- Treat all school stakeholders with respect.
- Promote the cultural safety, participation and empowerment of Aboriginal and Torres Strait Islander children (for example, by never questioning an Aboriginal child's self-identification).
- Promote the cultural safety, participation and empowerment of children from culturally and linguistically diverse backgrounds (for example, by having a zero-tolerance approach to discrimination).
- Promote the safety, participation and empowerment of children with a disability (for example, by having a zero tolerance of discrimination).
- Encourage all children to 'have a say and participate in all relevant School activities where possible, especially on important issues.
- Ensure as far as practicable that adults are not left alone with a child.
- Engage in regular performance reviews regarding child safe practices and culture.
- Meet with staff and volunteers regularly to discuss overarching matters related to child safeguarding and the implementation of child safeguarding policy; and
- Meet with staff on an urgent basis to support and guide decision-making in the event of suspected child abuse, or breach of the child safe policy or code of conduct.

Code of Conduct Breaches

Definition

A breach is any action or inaction by any school member to whom this code of conduct applies that fails to comply with the guidelines above.

Processes to manage a breach of the Code of Conduct

Breaches will be handled in a fair, unbiased and supportive manner. The following will occur:

- All people concerned will be advised of the process;

- All people concerned will be able to provide their version of events;
- The details of the breach, including the versions of all parties and the outcome, will be recorded;
- Matters discussed in the breach will be kept confidential; and
- An appropriate outcome will be decided.

Suitable outcomes for breaches

Depending on the nature of the breach, outcomes may include:

- Providing closer supervision;
- Further education and training;
- Mediating between those involved in the incident (where appropriate);
- Disciplinary procedures if necessary;
- Termination of employment or engagement with the school;
- Reporting allegations, disclosures and concerns to authorities and:
- Reviewing current policies and procedures and developing new policies and procedures

Relevant Legislation and standards include:

- Charter of Human Rights and Responsibilities Act 2006 (Vic)
- Child Safe Standards (Vic)
- Children, Youth and Families Act 2005 (Vic)
- Child Wellbeing and Safety Act 2005 (Vic)
- Disability Discrimination Act 1992 (Cth)
- Education and Care Services National Law Act 2010: Sections 166, 167, 174
- Education and Care Services National Regulations 2011: Regulations 155, 156, 157, 175
- Equal Opportunity Act 2010 (Vic)
- Fair Work Act 2009 (Cth)
- Fair Work Regulations 2009 (Cth)
- National Quality Standard, Quality Area 4: Staffing Arrangements
- Occupational Health and Safety Act 2004
- Occupational Health and Safety Regulations 2007
- Racial Discrimination Act 1975
- Racial and Religious Tolerance Act 2001 (Vic)
- Sex Discrimination Act 1984 (Cth)
- Victorian Institute of Teaching: The Victorian Teaching Profession Code of Conduct
- Victorian Institute of Teaching: The Victorian Teaching Profession Code of Ethics

By observing these standards, you acknowledge your responsibility to immediately report any breach of this code to the Philippine Language School of Victoria's Child Safety Officer, Catherine Yap at 0412 836 883.

This Code of Conduct will be reviewed by the Philippine Language School of Victoria's annually.

I have read this Code of Conduct and agree to abide by it.

Name of Staff/Volunteer: _____

Signature of Staff/Volunteer: _____

Role: _____

Date: _____

Name of Principal: _____

Signature of Principal _____